

**Calendar Line 8**

***Thi Diem Hong v Viet Hoai Le***  
**24CV431895**

Defendant's Motion to Enforce Settlement Pursuant to Code of Civil Procedure pursuant to section 664.6.

Code of Civil Procedure section 664.6 permits entry of judgment pursuant to a settlement only where the parties have stipulated in a writing signed by the parties or orally before the court to all material terms of the agreement. The statute is strictly construed, and the court's authority is limited to enforcing the actual agreement reached by the parties; it may not impose or supply terms that were not agreed upon. (*Levy v. Superior Court* (1995) 10 Cal.4th 578, 585; *In re Marriage of Assemi* (1994) 7 Cal.4th 896, 905.)

The requirement of direct party participation in the settlement process serves an important purpose. "The litigants' direct participation tends to ensure that the settlement is the result of their mature reflection and deliberate assent. This protects the parties against hasty and improvident settlement agreements by impressing upon them the seriousness and finality of the decision to settle, and minimizes the possibility of conflicting interpretations of the settlement." (*Levy, supra*, 10 Cal.4th at p. 585.)

A court may enforce a settlement under section 664.6 only where there is mutual assent to all material terms, and not where essential terms remain open or subject to future negotiation. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810–811; *Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360–1361.)

Here, although the parties executed a written settlement agreement, the record reflects that key implementing documents—including the promissory note, deed of trust, and escrow/title instructions—were not finalized and remained subject to ongoing negotiation. These provisions concern the method and security of payment and the mechanics of performance, and therefore constitute material terms of the settlement rather than mere ministerial details.

Defendant contends that the promissory note and deed of trust were fully negotiated, agreed upon, and approved by both parties, and that Plaintiff's refusal to execute those documents constitutes a failure of performance rather than a lack of agreement. However, the record reflects a material factual dispute as to whether those instruments were in fact finalized or whether their terms remained subject to further negotiation. Even crediting Defendant's position, section 664.6 requires a clear showing of mutual assent to all material terms. Where the evidence demonstrates uncertainty or dispute regarding the existence or completeness of such terms, enforcement is not appropriate.

Because the record demonstrates that the parties had not reached final agreement on all material terms necessary to effectuate the settlement, there is no enforceable agreement within the meaning of section 664.6. The court cannot supply or construct missing essential terms under the guise of enforcement. (*Weddington, supra*, 60 Cal.App.4th at pp. 810–811.)

On this record, the Court cannot conclude that the parties reached a final and complete agreement as to the material terms governing payment and security. Accordingly, enforcement under section 664.6 is not warranted.

Defendant's Motion to Enforce Settlement Pursuant to Code of Civil Procedure pursuant to section 664.6 is DENIED.

Plaintiff to prepare the final order, accompanied by the necessary form EFS-020, within 10 days of the date of the hearing.

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